

Harmonized Tariff Schedule of the United States Revision 9 (2024)

Annotated for Statistical Reporting Purposes

SECTION VIII

RAW HIDES AND SKINS, LEATHER, FURSKINS AND ARTICLES THEREOF; SADDLERY AND HARNESS; TRAVEL GOODS, HANDBAGS AND SIMILAR CONTAINERS; ARTICLES OF ANIMAL GUT (OTHER THAN SILK-WORM GUT)

CHAPTER 42

ARTICLES OF LEATHER; SADDLERY AND HARNESS; TRAVEL GOODS, HANDBAGS AND SIMILAR CONTAINERS; ARTICLES OF ANIMAL GUT (OTHER THAN SILKWORM GUT)

Additional U.S. Notes

1. For the purposes of heading 4202, the expression "travel, sports and similar bags" means goods, other than those falling in subheadings 4202.11 through 4202.39, of a kind designed for carrying clothing and other personal effects during travel, including backpacks and shopping bags of this heading, but does not include binocular cases, camera cases, musical instrument cases, bottle cases and similar containers.
2. For purposes of classifying articles under subheadings 4202.12, 4202.22, 4202.32, and 4202.92, articles of textile fabric impregnated, coated, covered or laminated with plastics (whether compact or cellular) shall be regarded as having an outer surface of textile material or of sheeting of plastics, depending upon whether and the extent to which the textile constituent or the plastic constituent makes up the exterior surface of the article.

Section XI

TEXTILES AND TEXTILE ARTICLES

Additional U.S. Notes

1. In the case of each provision in the tariff schedule on which the United States has agreed to reduce the rate of duty, pursuant to a trade agreement entered into under section 101 of the Trade Act of 1974 before January 3, 1980, on any cotton, wool or man-made fiber textile product as defined in the Arrangement Regarding International Trade in Textiles, as extended on December 14, 1977 (the Arrangement), if the Arrangement, or a substitute arrangement, including unilateral import restrictions or bilateral agreements, determined by the President to be suitable, ceases to be in effect with respect to the United States before the total reduction in the rate of duty for such provision under sections 101 and 109 of the Trade Act of 1974 has become effective, then the President shall proclaim the rate of duty in rate column 1 for such provision existing on January 1, 1975, to be the rate of duty effective, with respect to articles entered or withdrawn from warehouse for consumption, within 30 days after such cessation and until the President proclaims the continuation of such reduction under the next sentence. If subsequently the Arrangement or a substitute arrangement, including unilateral import restrictions or bilateral agreements, determined by the President to be suitable, is in effect with respect to the United States, then the President shall proclaim the continuation of the reduction of such rate of duty pursuant to such trade agreement. For purposes of section 109(c)(2) of the Trade Act of 1974, any time when a rate of duty existing on January 1, 1975, is in effect under this note shall be time when part of such reduction is not in effect by reason of legislation of the United States or action thereunder.

2. The term "Certified hand-loomed and folklore" as used with respect to products provided for in the tariff schedule, refers to such products as have been certified, in accordance with procedures established by the United States Trade Representative pursuant to international understandings, by an official of a government agency of the country where the products were produced, to have been so made.

Statistical Notes

1. Restraints under the Arrangement regarding International Trade in Textiles may not apply to developing country exports of "hand-loomed and folklore products" which have been certified, in accordance with procedures established by the Committee for the Implementation of Textile Agreements pursuant to international understandings, by an official of a government agency of the country where the products were produced, to have been so made. The importer is required to identify such certified products on the entry summary or withdrawal forms by placing the symbol "F" as a prefix to the appropriate 10-digit statistical reporting number.

2. For the purposes of the Tariff Schedule:

(a) The term "subject to cotton restraints" means articles in which:

(i) The cotton component equals or exceeds 50 percent by weight of all the component fibers thereof; or

(ii) The cotton and any wool, fine animal hair or man-made fibers in the aggregate equals or exceeds 50 percent by weight of all the component fibers thereof and the cotton component equals or exceeds the weight of each of the wool (including fine animal hair) and man-made fiber components.

(b) The term "subject to wool restraints" means articles not provided for in (a) above and in which the wool (including fine animal hair) component exceeds 17 percent by weight of all the component fibers thereof.

(c) The term "subject to man-made fiber restraints" means articles not provided for in (a) or (b) above and the man-made fiber component, or the man-made fibers and any cotton, wool or fine animal hair in the aggregate, equals or exceeds 50 percent by weight of all the component fibers thereof.

For the application of this note, where appropriate, only the part of the product which determines the classification under general interpretive rule 3 shall be taken into account.

3. As a convenient cross-reference, each of the textile categories (or groupings) used by the United States in monitoring shipments of these products and to administer the United States textile trade agreements programs is listed in the schedule following the appropriate 10-digit description.

CHAPTER 61
ARTICLES OF APPAREL AND CLOTHING ACCESSORIES, KNITTED OR CROCHETED

Additional U.S. Note

1. For the purpose of heading 6111, the term "sets" means two or more different garments of headings 6111, 6209 or 6505 imported together, of corresponding sizes and intended to be worn together by the same person.

Statistical Notes

1. Merchandise entered together and classified for customs purposes as an ensemble, under subheadings 6103.21.00, 6103.22.00, 6103.23.00, 6103.29.10, 6104.21.00, 6104.22.00, 6104.23.00 or 6104.29.10, or as a track suit under subheadings 6112.11.00, or 6112.12.00 shall be reported statistically as separate articles under the most appropriate 10-digit reporting number within the same 8-digit tariff subheading which provides for the ensemble or track suit, warm-up or jogging suit.

2. For purposes of headings 6103, 6104 and 6112, statistical provisions for shirts refer to garments provided for in headings 6105, 6106 and 6110, other than sweaters, pullovers, vests or cardigans referred to in statistical note 3 below.

3. For purposes of this chapter, statistical provisions for sweaters include garments, whether or not known as pullovers, vests or cardigans, the outer surfaces of which are constructed essentially with 9 or fewer stitches per 2 centimeters measured in the direction the stitches were formed, and garments, known as sweaters, where, due to their construction, the stitches on the outer surface cannot be counted in the direction the stitches were formed.

4. Certain garments of chapter 61 assembled abroad from components formed and cut in the United States which, after assembly have been subject to bleaching, garment dyeing or perma-pressing abroad, may be eligible for entry under a Special Access Regime. Eligibility must be established under a bilateral agreement, and entry must be in compliance with procedures established by the Committee for the Implementation of Textile Agreements. The importer is required to identify such garments on the entry summary or withdrawal forms by placing the symbol "H" as a prefix to the appropriate 10-digit chapter 61 tariff number.

5. Certain garments of chapter 61, manufactured (cut and assembled) from fabric formed in the United States, may be eligible for entry under the Outward Processing Program for textiles and apparel. Eligibility must be in compliance with procedures established by the Committee for the Implementation of Textile Agreements (CITA). The importer is required to identify such garments on the entry summary or withdrawal forms by placing the symbol "S" as a prefix to the appropriate 10-digit chapter 61 tariff number.

6. For the purposes of statistical reporting under heading 6110, the term "knit to shape" means garments knit to shape on flat-knitting machines, having a stitch count exceeding 9 stitches per 2 centimeters, but less than or equal to 18 stitches per 2 centimeters, measured on the outer surfaces of the fabric, in the direction on which the stitches are formed. For

purposes of this statistical note, in the instances where both knit and purl stitches are usually counted, the purl stitches will be disregarded, and only the knit stitches on the outer surface of the fabric will be counted. All of the garment's components, which include, but are not limited to, collars, plackets, cuffs, waistbands and pockets, are knit to shape. All of the components are assembled by looping and linking, including the side seams.

CHAPTER 62

ARTICLES OF APPAREL AND CLOTHING ACCESSORIES, NOT KNITTED OR CROCHETED

Additional U.S. Notes

1. For the purpose of heading 6209, the term "sets" means two or more different garments of headings 6111, 6209 or 6505 imported together, of corresponding sizes and intended to be worn together by the same person.
2. For the purposes of subheadings 6201.30.40, 6201.30.70, 6201.40.45, 6201.40.70, 6202.30.40, 6202.30.70, 6202.40.45, 6202.40.70, 6203.41.01, 6203.41.25, 6203.43.03, 6203.43.11, 6203.43.55, 6203.43.75, 6204.61.05, 6204.61.60, 6204.63.02, 6204.63.09, 6204.63.55, 6204.63.75 and 6211.20.15, the term "water resistant" means that garments classifiable in those subheadings must have a water resistance (see current version of ASTM D7017) such that, under a head pressure of 600 millimeters, not more than 1.0 gram of water penetrates after two minutes when tested in accordance with the current version of AATCC Test Method 35. This water resistance must be the result of a rubber or plastics application to the outer shell, lining or inner lining.
3. (a) When used in a subheading of this chapter or immediate superior text thereto, the term 'recreational performance outerwear' means trousers (including, but not limited to, ski or snowboard pants, and ski or snowboard pants intended for sale as parts of ski-suits), coveralls, bib and brace overalls, jackets (including, but not limited to, full zip jackets, ski jackets and ski jackets intended for sale as parts of ski-suits), windbreakers and similar articles (including padded, sleeveless jackets), the foregoing of fabrics of cotton, wool, hemp, bamboo, silk or manmade fibers, or a combination of such fibers; that are either water resistant within the meaning of additional U.S. note 2 to this chapter or treated with plastics, or both; with critically sealed seams, and with 5 or more of the following features (as further provided herein):
 - (i) insulated for cold weather protection;
 - (ii) pockets, at least one of which has a zippered, hook and loop, or other type of closure;
 - (iii) elastic, draw cord or other means of tightening around the waist or leg hems, including hidden leg sleeves with a means of tightening at the ankle for trousers and tightening around the waist or bottom hem for jackets;
 - (iv) venting, not including grommet(s);
 - (v) articulated elbows or knees;
 - (vi) reinforcement in one of the following areas: the elbows, shoulders, seat, knees, ankles or cuffs;
 - (vii) weatherproof closure at the waist or front;
 - (viii) multi-adjustable hood or adjustable collar;

(ix) adjustable powder skirt, inner protective skirt or adjustable inner protective cuff at sleeve hem;

(x) construction at the arm gusset that utilizes fabric, design or patterning to allow radial arm movement; or

(xi) odor control technology

The term 'recreational performance outerwear' does not include occupational outerwear.

(b) For purposes of this note, the following terms have the following meanings:

(i) the term 'treated with plastics' refers to textile fabrics impregnated, coated, covered or laminated with plastics, as described in note 2 to chapter 59.

(ii) The term 'sealed seams' means seams that have been covered by means of taping, gluing, bonding, cementing, fusing, welding or a similar process so that air and water cannot pass through the seams when tested in accordance with the current version of AATCC Test Method 35.

(iii) The term 'critically sealed seams' means--

(A) for jackets, windbreakers and similar articles (including padded, sleeveless jackets), sealed seams that are sealed at the front and back yokes, or at the shoulders, arm holes, or both, where applicable; and

(B) for trousers, overalls and bib and brace overalls and similar articles, sealed seams that are sealed at the front (up to the zipper or other means of closure) and back rise.

(iv) The term 'insulation for cold weather protection' means insulation that meets a minimum clo value of 1.5 per ASTM F 2732.

(v) The term 'venting' refers to closable or permanent constructed openings in a garment (excluding front, primary zipper closures and grommet(s)) to allow increased expulsion of built-up heat during outdoor activities. In a jacket, such openings are often positioned on the underarm seam of a garment but may also be placed along other seams in the front or back of a garment. In trousers, such openings are often positions on the inner or outer leg seams of a garment but may also be placed along other seams in the front or back of a garment.

(vi) The term 'articulated elbows or knees' refers to the construction of a sleeve (or pant leg) to allow improved mobility at the elbow (or knee) through the use of extra seams, darts, gussets or other means.

(vii) the term 'reinforcement' refers to the use of a double layer of fabric or section(s) of fabric that is abrasion-resistant or otherwise more durable than the face fabric of the garment.

(viii) The term 'weatherproof closure' means a closure (including, but not limited to, laminated or coated zippers, storm flaps or other weatherproof construction) that has

been reinforced or engineered in a manner to reduce the penetration or absorption of moisture or air through an opening in the garment.

(ix) the term 'multi-adjustable hood' or adjustable collar' means, in the case of a hood, a hood into which is incorporated two or more draw cords, adjustment tabs or elastics, or, in the case of a collar, a collar into which is incorporated at least one draw cord, adjustment tab, elastic or similar component, to allow volume adjustments around a helmet, or around the crown of the head, neck, or face.

(x) The terms 'adjustable powder skirt' and 'inner protective skirt' refer to a partial lower inner lining with means of tightening around the waist for additional protection from the elements.

(xi) The term 'arm gusset' means construction at the arm of a gusset that utilizes an extra fabric piece in the underarm, usually diamond- or triangular-shaped, designed or patterned to allow radial arm movement.

(xii) The term 'radial arm movement' refers to unrestricted 180-degree range of motion for the arm while wearing performance outerwear.

(xiii) The term 'odor control technology' means the incorporation into a fabric or garment of materials, including, but not limited to, activated carbon, silver, copper or any combination thereof, capable of adsorbing, absorbing or reacting with human odors, or effective in reducing the growth of odor-causing bacteria.

(xiv) The term 'occupational outerwear' means outerwear garments, including uniforms, of a kind principally used in the workplace and specially designed to provide protection from work place hazards such as fire, electrical, abrasion or chemical hazards, or impacts, cuts and punctures.

(c) The importer of goods entered as 'recreational performance outerwear' under a particular subheading of this chapter shall maintain records demonstrating that the entered goods meet the terms of this note, including such information as is necessary to demonstrate the presence of the specific features that render the goods eligible for classification as 'recreational performance outerwear'.

Statistical Notes

1. For the purposes of subheadings 6203.21.00, 6203.22.30, 6203.23.00, 6203.29.20, 6204.21.00, 6204.22.30, 6204.23.00 and 6204.29.20, merchandise entered together and classified for customs purposes as an ensemble, shall be reported statistically as separate articles and reported under the most appropriate 10-digit reporting number within the same 8-digit tariff subheading which provides for the ensemble.

2. Certain garments of chapter 62 assembled abroad from components formed and cut in the United States which, after assembly have been subject to bleaching, garment dyeing, stone-washing, acid-washing or perma-pressing abroad, may be eligible for entry under a Special Access Program or Special Regime. Eligibility must be established under a bilateral agreement, and entry must be in compliance with procedures established by the Committee for the Implementation of Textile Agreements. The importer is required to identify such

garments on the entry summary or withdrawal forms by placing the symbol "H" as a prefix to the appropriate 10-digit chapter 62 tariff number.

3. Certain garments of chapter 62, manufactured (cut and assembled) from fabric formed in the United States, may be eligible for entry under the Outward Processing Program for textiles and apparel. Eligibility must be in compliance with procedures established by the Committee for the Implementation of Textile Agreements (CITA). The importer is required to identify such garments on the entry summary or withdrawal forms by placing the symbol "S" as a prefix to the appropriate 10-digit chapter 62 tariff number.

4. For the purpose of statistical reporting numbers 6203.43.1110, 6203.43.7510, 6204.63.0910, 6204.63.7510, 6210.40.2531, 6210.40.5531, 6210.50.0531 and 6210.50.5531, the term "ski/snowboard pants" means ankle-length pants made of synthetic fabrics with or without insulation for cold weather protection, with pockets, at least one of which has a zippered or hook and loop closure, sealed seams at the front (up to the zipper or other means of closure) and back rise, hidden leg sleeves with a means of tightening at the ankle, and with one or more of the following: side openings, scuff guards or reinforcement in the seat. A sealed seam is a seam that is sealed by means of taping, gluing, bonding, cementing, fusing or similar process so that air and water cannot pass through.

SECTION XII

FOOTWEAR, HEADGEAR, UMBRELLAS, SUN UMBRELLAS, WALKING-STICKS, SEAT-STICKS,
WHIPS, RIDING-CROPS AND PARTS THEREOF; PREPARED FEATHERS AND ARTICLES
MADE THEREWITH; ARTIFICIAL FLOWERS; ARTICLES OF HUMAN HAIR

CHAPTER 64

FOOTWEAR, GAITERS AND THE LIKE; PARTS OF SUCH ARTICLES

Additional U.S. Notes

1. For the purposes of this chapter:

(a) The term "welt footwear" means footwear constructed with a welt, which extends around the edge of the tread portion of the sole, and in which the welt and shoe upper are sewed to a lip on the surface of the insole, and the outsole of which is sewed or cemented to the welt;

(b) The term "footwear for men, youths and boys" covers footwear of American youths' size 11-1/2 and larger for males, and does not include footwear commonly worn by both sexes.

2. For the purposes of this chapter, the term "tennis shoes, basketball shoes, gym shoes, training shoes and the like" covers athletic footwear other than sports footwear (as defined in subheading note 1 above), whether or not principally used for such athletic games or purposes.
3. For the purposes of heading 6401 "waterproof footwear" means footwear specified in the heading, designed to protect against penetration by water or other liquids, whether or not such footwear is primarily designed for such purposes.
4. Provisions of subheading 6406.10 for "formed uppers" cover uppers, with closed bottoms, which have been shaped by lasting, molding or otherwise but not by simply closing at the bottom.
5. For the purposes of determining the constituent material of the outer sole pursuant to note 4(b) of this chapter, no account shall be taken of textile materials which do not possess the characteristics usually required for normal use of an outer sole, including durability and strength.
6. For the purposes of subheadings 6402.91.42 and 6402.99.32, the term "protective active footwear" means footwear (other than footwear described in subheading note 1) that is designed for outdoor activities, such as hiking shoes, trekking shoes, running shoes, and trail running shoes, the foregoing valued at over \$24/pair and which provides protection against water that is imparted by the use of a coated or laminated textile fabric.

Statistical Notes

1. For the purposes of this chapter:

(a) The expression "work footwear" encompasses, in addition to footwear having a metal toe-cap, specialized footwear for men or for women that:

- has outer soles of rubber or plastics, and
- is of a kind designed for use by persons employed in occupations, such as those related to the agricultural, construction, industrial, public safety and transportation sectors, that are not conducive to the use of casual, dress, or similar lightweight footwear, and
- has special features to protect against hazards in the workplace (e.g., resistance to chemicals, compression, grease, oil, penetration, slippage, or static-buildup).

Work footwear does not cover:

- sports footwear, tennis shoes, basketball shoes, gym shoes, training shoes and the like;
- footwear designed to be worn over other footwear;
- footwear with open toes or open heels; or
- footwear, except footwear of heading 6401, of the slip-on type or other footwear that is held to the foot without the use of laces or a combination of laces and hooks or other fasteners.

(b) The term "footwear for men" covers footwear of American men's size 6 and larger for males, and does not include footwear commonly worn by both sexes;

(c) The term "footwear for women" covers footwear of American women's size 4 and larger, whether for females or of types commonly worn by both sexes;

(d) The term "house slippers" covers:

- (i) Footwear with outer soles not over 3.5 mm in thickness, consisting of cellular rubber, non-grain leather, or textile material; or
- (ii) Footwear with outer soles not over 2 mm in thickness consisting of poly(vinyl chloride), whether or not backed; or
- (iii) Footwear which when measured at the ball of the foot has sole components (including any inner and mid-soles) with a combined thickness not over 8 mm as measured from the outer surface of the uppermost sole component to the bottom surface of the outer sole and which when measured in the same manner at the area of the heel has a thickness equal to or less than that at the ball of the foot.

2. For the purposes of statistical reporting numbers 6402.91.4063, 6402.99.3173, 6405.20.3070, 6405.20.9070 and 6405.90.9030, the term "footwear for infants" cover American infant sizes up to and including size 3.

CHAPTER 65
HEADGEAR AND PARTS THEREOF

Additional U.S. Note

1. This chapter does not include mufflers, shawls, scarves, mantillas, veils and the like (heading 6117 or 6214).